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File No.: EXP202210045

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: The Spanish Agency for Data Protection became aware through a communication via the priority attention channel for vulnerable groups of this agency, of the following content:

D.D.D. (hereinafter, the complainant) states that personal photos and videos of a sexual nature have been published on a website without her consent. The website is as follows:

***URL.1

She claims that it has not been possible to contact the website administrator because the mailbox is full and does not allow the receipt of new emails. The website is in Chinese and does not identify its responsible party, nor does it offer any other means of contact than the email address ***EMAIL.1 that appears in the link ***URL.2

The respondent is ZZTT15.COM (hereinafter, the respondent)

SECOND: As a result of this communication, the Director of the Spanish Agency for Data Protection initiated, on September 27, 2022, an ex officio procedure, ordering the performance of preliminary investigation actions.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

After an initial verification of the contents on the website, it is confirmed that four photographs of a young girl with Asian features and a sexual content video featuring the same girl are published. The images were published on the website one day before this communication. The website is entirely in Chinese and does not identify the responsible party.

The details of the information provided by the WHOIS service of the domain ***URL.3 are as follows:

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Registrar:

GoDaddy.com, LLC (IANA ID: 146)

URL: <https://www.godaddy.com>

Whois Server: whois.godaddy.com

DNS:

adele.ns.cloudflare.com

huxley.ns.cloudflare.com

Tech Contact:

Registration Private

Domains By Proxy, LLC

DomainsByProxy.com,

Tempe, Arizona, 85284, us

ASN:

AS13335 CLOUDFLARENET, US

On September 27, 2022, various actions were taken to try to ascertain the responsible party for the domain zztt15.com, using both the information obtained from the WHOIS service and other information

extracted from the internet.

From this initial investigation of the domain, the following data is extracted:

- The domain registrar is GoDaddy.com, LLC, a domain registration company that also offers web hosting, and the following contact options are detected to attempt an initial communication for content removal: abuse@godaddy.com, contentcomplaint@godaddy.com.
- The DNS of the domain belongs to CLOUDFARE.COM.
- The ASN also belongs to CLOUDFARENET, US, being this a first possible option for the hosting provider of the site, although the company CLOUDFARENET usually offers proxy services and a content delivery network that sits between the user visiting the portal and the hosting provider.
- The contact data that appears in WHOIS is: Registration Private (Domains By Proxy, LLC). This is usually used by domains that want to hide their identity when registering names.

On September 27, 2022, an email was sent to the contact address that appears on the website zztt15.com (**EMAIL.1) informing of the complaint received regarding the content published on its website and requesting its collaboration for the removal of this content. From the previous sending, a delivery confirmation email was received with the following content: "Delivery to these recipients or groups was completed, but the destination server did not send delivery notification information," however, no response has been received from the respondent.

The website also detects a link to a Twitter account where similar content to that published on the site is hosted. (...)

On September 27, 2022, an email was sent to the existing contact addresses for the provider GoDaddy.com (abuse@godaddy.com and

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contentcomplaint@godaddy.com), informing about the claim received at this agency regarding the content published on the website zztt15.com and requesting their collaboration for its removal.

On September 28, 2022, an email response is received from the registrar company GoDaddy.com with the following content that evades responsibility for the claimed material:

"Thank you for the message. Although GoDaddy is the domain registrar, we are not the hosting provider for this site. We have neither access to, nor jurisdiction over the content on this site. It is the domain name registrant's or site administrator's responsibility to review and maintain their website so issues regarding the content of the website will need to be addressed directly to the hosting provider.

Sincerely,

Content Safety & Moderation

GoDaddy"

Unofficial translation:

"Thank you for the message. Although GoDaddy is the domain registrar, we are not the hosting provider for this site. We have neither access to, nor jurisdiction over the content on this site. It is the responsibility of the domain name holder or the site administrator to review and maintain their website, so issues related to the content of the website should be directed to the hosting provider.

Sincerely,

Content Safety & Moderation

GoDaddy"

According to the information provided by the WHOIS service, the website was linked to the servers of the provider CLOUDFARE, and after an initial investigation through the public internet space, the following contact options with this provider are obtained:

- The email address privacyquestions@cloudflare.com.
- Abuse reporting form for content published at the URL <https://abuse.cloudflare.com>.

On September 28, the email address is used to send a request for collaboration. The content sent is attached as an object associated with the file ("Req Soft Cloudflare.pdf"). On the same date, the form on the website <https://abuse.cloudflare.com> is filled out requesting, similarly to the previous email,

collaboration from CLOUDFLARE for the removal of the content from the portal zztt15.com. On October 4, 2022, two response emails are received from this provider:

Email 1:

"Hi (...),

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Your reports were processed and you should receive an email shortly. We have forwarded to the host for review and you can reach out to them with the info on the responses to follow-up.

Given the type of service we provide, and the fact that we do not create or host content, there are limits to what we can do. Cloudflare does not have control over, or information about, specific materials that appear on a customer's website. Since Cloudflare does not offer web hosting services, it is not capable of removing materials from a website. Materials will remain on the host server for a website regardless of whether that website uses Cloudflare services or not to improve delivery of that content. Termination of Cloudflare services for a website does not change the availability or appearance of that website, or any of the materials on it. Only the host can, which is why you need to contact them.

Regards,

Cloudflare Trust and Safety

Email 2:

"In accordance with our Privacy Policy and Terms of Service, non-public information about Cloudflare customers is not released except as lawfully required by appropriate legal process, such as a subpoena, court order, or other valid legal process. It is our policy to notify users of any actions taken on their accounts in response to requests made by third parties -- including requests to preserve or produce documents or information -- unless we are prohibited from doing so by statute or court order. Cloudflare is a U.S. company that stores customer data inside the United States, and we must comply with U.S. law restricting the provisioning of user data to third parties, including law enforcement entities from countries outside the United States. Before responding to direct requests from non-U.S. law enforcement, Cloudflare will carefully assess such requests for consistency with relevant laws and internal policies, a process that may delay our response. Cloudflare will respond promptly to requests from non-U.S. law enforcement agencies for user information that are issued via U.S. court either by way of a mutual legal assistance treaty or a letter rogatory, when properly served.

Cloudflare is an Internet infrastructure company offering security and performance services through a network of more than 200 locations around the world that sit between website hosting providers and Internet users. From this position, Cloudflare offers network service solutions, including a reverse proxy, pass-through security service, and a content distribution network (CDN).

In other words, Cloudflare provides security and performance enhancements for websites around the world by positioning its infrastructure in front of those websites and as a result Cloudflare's nameservers may appear in the WHOIS and Cloudflare's IP addresses may appear in the DNS records for websites using our services.

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Cloudflare is not a hosting provider, does not organize or alter content, and does not have the ability to remove content hosted by others.

Finally, by responding to your request, Cloudflare does not waive any objections, including the lack of jurisdiction or proper service.

For more information on the kind of services we provide and to answer any further questions you may have, please contact ***EMAIL.2.

Unofficial Translation:

"In accordance with our Privacy Policy and Terms of Service, non-public information about Cloudflare customers is not disclosed except when legally required by an appropriate legal process, such as a subpoena, court order, or other valid legal process. It is our policy to notify users of any action taken on their accounts in response to requests made by third parties, including requests to preserve or produce documents or information, unless we are prohibited from doing so by law or court order.

Cloudflare is a U.S. company that stores customer data within the United States, and we must comply with U.S. law that restricts the provision of user data to third parties, including law enforcement entities from countries outside the United States. Before responding to direct requests from non-U.S.

authorities, Cloudflare will carefully evaluate such requests for consistency with relevant laws and internal policies, a process that may delay our response. Cloudflare will respond promptly to requests from non-U.S. law enforcement agencies for user information that are issued through a U.S. court, whether through a mutual legal assistance treaty or a letter rogatory, when properly fulfilled.

Cloudflare is an Internet infrastructure company that provides security and performance services through a network of over 200 locations worldwide that sit between web hosting providers and Internet users. From this position, Cloudflare offers network service solutions, including a reverse proxy, a pass-through security service, and a content delivery network (CDN).

In other words, Cloudflare provides security and performance enhancements for websites around the world by positioning its infrastructure in front of those websites and, as a result, Cloudflare's name servers may appear in WHOIS and Cloudflare's IP addresses may appear in the DNS records of the websites that use our services.

Cloudflare is not a hosting provider, does not organize or alter content, and does not have the ability to remove content hosted by others.

Finally, by responding to your request, Cloudflare does not waive any objections, including the lack of jurisdiction or proper service.

For more information on the kind of services we provide and to answer any further questions you may have, please contact ***EMAIL.2."

On October 4, 2022, an email was resent to the address privacyquestions@cloudflare.com reiterating our request for cooperation in the removal of content; the form provided by CLOUDFARE for content abuse notifications was also used again.

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On October 5, 2022, a new email was received from the provider CLOUDFARE from the address abuse@notify.cloudflare.com with the following content:

"Cloudflare received your abuse report regarding:
zztt15.com

The majority of websites for which we receive reports of abuse utilize Cloudflare's reverse proxy, pass-through security service, and Cloudflare cannot control or remove content from the Internet that it does not host. Accordingly, we have forwarded your abuse report to the hosting provider so that they may take action. We have also forwarded your abuse report to the website owner if you have directed us to do so.

Accepted URL(s) on zztt15.com:

***URL.1

Hosting Provider:

AMAZON-02, US

Abuse Contact:

abuse@amazonaws.com

We have forwarded your report on to the responsible hosting provider.

You may also direct your report to:

1. The provider where zztt15.com is hosted (provided above);
2. The owner listed in the WHOIS record for zztt15.com and/or;
3. The contact listed on the zztt15.com site.

Note: A lookup of the IP for a Cloudflare customer website will show Cloudflare IPs because we are a pass-through network. The actual website is still hosted at the hosting provider indicated above. If the hosting provider has any questions, please have the hosting provider contact us directly regarding this site. Due to attempted abuse of our complaint reporting process, we will only provide the IP of zztt15.com to the responsible hosting provider if they contact us directly at abusereply@cloudflare.com.

Regards,

Cloudflare Trust & Safety”

Unofficial Translation:

“Cloudflare received your abuse report regarding:

zztt15.com

The majority of websites for which we receive reports of abuse utilize Cloudflare’s reverse proxy, pass-through security service, and Cloudflare cannot control or remove content from the Internet that it does not host. Accordingly, we have forwarded your abuse report to the hosting provider so that they may take action. We have also forwarded your abuse report to the website owner if you have directed us to do so.

Accepted URL(s) on zztt15.com:

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***URL.1

Hosting Provider:

AMAZON-02, US

Abuse Contact: abuse@amazonaws.com

We have forwarded your report to the responsible hosting provider.

You may also direct your report to:

1. The provider hosting zztt15.com (previously provided);
2. The owner listed in the WHOIS registry of zztt15.com or;
3. The contact appearing on the zztt15.com site.

Note: An IP search for a Cloudflare client website will show Cloudflare's IPs because we are a pass-through network. The actual website remains hosted on the previously indicated hosting provider. If the hosting provider has any questions, please contact us directly regarding this site. Due to an attempt to abuse our complaint notification process, we will only provide the IP of zztt15.com to the responsible hosting provider if they contact us directly at abusereply@cloudflare.com.

Regards,

Cloudflare Trust & Safety”

From the analysis of the previous email, the following information is extracted:

- They confirm that they have forwarded our content removal request to the hosting provider and the domain owner.
- They confirm that the hosting provider is AMAZON, US and provide a possible contact avenue to report the content abuse, specifically the email address abuse@amazonaws.com.
- They confirm that they cannot provide us with the IP address of the domain.

On October 6, 2022, an email was sent to the address abuse@amazonaws.com, belonging to the hosting provider “AMAZON, US” following the following course of action:

- Informing of the complaint received by this Data Protection Agency and requesting collaboration for the removal of content published without their consent on the zztt15.com website.

- Requesting collaboration for the identification of the responsible party for the website.
- Simultaneously, on October 6, 2022, a communication of information was sent to the Spanish representative of AMAZON, US marked by the following course of action:
- Informing of the complaint received by this Agency.
 - Requesting collaboration to confirm the information received in which it was confirmed that AMAZON, US was the hosting provider of the zztt15.com website.

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- Requesting help to convey the information to AMAZON, US requesting collaboration for the removal of the content.

The previous request was notified on October 6, 2022, without setting a deadline for response since information was not being requested, with acknowledgment of receipt on October 13, 2022.

In order to obtain information from the claimant and any additional data they might have regarding the Chinese website where the contents were published, it was decided to contact the claimant directly using the following contact methods:

On October 5, 2022, a first request for information was made electronically, marked by the following line of investigation:

- o Providing any additional information about the website where the claimed contents were hosted.
- o Certifying that the image published in the reported contents of the zztt15.com portal belongs to the claimant.

As the previous notification expired without the recipient having accessed its content, on October 25, a new reiteration was decided via postal mail; however, this was also not received by its recipient, marked as "Absent in delivery."

On October 10, 2022, and November 15, 2022, two emails were sent to the address provided in the complaint (G.G.G.) marked by the same line of investigation as the previous requests. No response was obtained to either of the two previous emails.

Considering the impossibility of contacting the claimant through the previous methods, a phone call was made to the number provided by the claimant. Multiple call attempts were made over several days, starting on October 19, 2022, and persisting in the contact attempts until the end of November; however, all resulted in the same outcome "phone off or out of coverage."

Despite all previous contact attempts, on January 10, 2023, a final attempt was made to contact the claimant using the email address provided in the complaint again; in the content of this email, the repeated contact attempts were indicated, and a contact phone number was provided; the text was sent in Chinese instead of Spanish. On January 11, 2023, a call was received at the phone number that had been provided, the caller corresponded to the person who filed the complaint in September 2022, indicating (with many difficulties as they did not speak Spanish well) that the content they had reported did not correspond to them but rather to their friend and that they filed the complaint on behalf of their friend as it was causing her great harm. During the call, they were asked to please send us official accreditation both of themselves (as a representative) and of their friend (the affected person).

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responds that you do not know and that you cannot enter the record to send us the documentation and you request that it please be sent using email, reiterating your request for assistance in the removal of the content and reaffirming that it was causing significant harm to your friend. On the same day (January 11, 2023), shortly after the call, an email is received with the following content:

(...)

It is verified that the photograph appearing on the ID has very similar features to the person appearing in the four photographs and the reported video. It is confirmed that the date of birth is February 2, 2003, confirming that this is not a minor. The person filing the complaint on behalf of the affected individual is I.I.I. with ***NIF.1.

On January 11, 2023, contact is made with both the Chinese website itself, through the email address and the Twitter contact provided on its webpage, as well as with the hosting provider AMAZON, US via the email abuse@amazonaws.com. On January 18, 2023, a response is received from AMAZON US via email, from the address ec2-abuse@amazonaws.com with the following content:

"Hello,

Thank you for contacting Amazon Web Services. We take reports of content depicting sexual exploitation hosted on our services very seriously; it is specifically prohibited in our Acceptable Use Policy ([https://aws.amazon.com/aup/\(%\)](https://aws.amazon.com/aup/(%))).

We have forwarded your report to the CyberTipLine at the National Center for Missing and Exploited Children (NCMEC). NCMEC works closely with law enforcement and with internet services like AWS, and they will evaluate the content you've reported and take appropriate action, including contacting AWS.

We ask that you also submit a report directly to NCMEC via <https://report.cybertip.org/index.htm> regarding this content. If you have additional information regarding this report, please let us know by responding to this notification.

Best regards,

AWS Trust & Safety"

Unofficial translation:

"Hello,

Thank you for contacting Amazon Web Services. We take reports of content depicting sexual exploitation hosted on our services very seriously; it is specifically prohibited in our Acceptable Use Policy ([https://aws.amazon.com/aup/\(%\)](https://aws.amazon.com/aup/(%))).

We have forwarded your report to the CyberTipline at the National Center for Missing and Exploited Children (NCMEC). NCMEC works closely with law enforcement and with internet services like AWS, and they will evaluate the content you've reported and take appropriate action, including contacting AWS.

We ask that you also submit a report directly to NCMEC via <https://report.cybertip.org/index.htm> regarding this content. If you have additional information regarding this report, please let us know by responding to this notification.

Best regards,

AWS Trust & Safety"

From the analysis of the previous response, it is concluded that AMAZON US states that they have forwarded our request to the CyberTipLine, the centralized system in the US belonging to the National Center for Missing & Exploited Children (NCMEC), to report child exploitation and online deception for sexual purposes involving children.

On January 30, 2023, a new and final attempt to contact AMAZON US is decided, through abuse@amazonaws.com and ec2-abuse@amazon.com, again requesting their collaboration in the removal of the content; in this new contact, it is confirmed that the affected person is an adult Spanish citizen.

On February 5, 2023, a response email is received from AMAZON US from the address ec2-abuse@amazon.com with the following content:

Hello,

Thank you for submitting your abuse report.

We've determined that the content you reported is hosted on the Amazon Web Services platform.

While the IP address of the material may indicate that the network is ours, the user is actually the one controlling the content in question.

We'll investigate your complaint to determine what additional actions, if any, need to be taken in this case. If you wish to provide additional information to us or our customer regarding this case, please reply to this email.

Thanks again for alerting us to this issue.

Regards,

AWS Trust & Safety

Unofficial translation:

"Hello,

Thank you for submitting your abuse report.

We've determined that the content you reported is hosted on the Amazon Web Services platform.

While the IP address of the material may indicate that the network is ours, the user is actually the one controlling the content in question.

We'll investigate your complaint to determine what additional actions, if any, need to be taken in this case. If you wish to provide additional information to us or our customer regarding this case, please reply to this email.

Thanks again for alerting us to this issue.

Regards,

AWS Trust & Safety"

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On February 13, 2023, after verifying the URL where the contents were hosted, it was confirmed that the content is no longer accessible, and instead, an error message appears with the following text (diligence is preserved in associated objects and linked to the file):

"Access denied

Error code 1020

You do not have access to zztt15.com.

The site owner may have set restrictions that prevent you from accessing the site

I got an error when visiting ZZTT15.COM.

Error code: 1020

Ray ID: 7994aa7a5f473849

Country: ES

Data center: mad04

IP: ***IP.1

Timestamp: 2023-02-13 09:09:37 UTC"

Unofficial translation:

Access denied

Error code 1020

You do not have access to zztt15.com.

The site owner may have set restrictions that prevent you from accessing the site. There was an error when visiting ZZTT15.COM.

Error code: 1020

Ray ID: 7994aa7a5f473849

Country: ES

Data center: Mad04

IP: ***IP.1

Timestamp: 2023-02-13 09:09:37 UTC.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Legitimacy for processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction."

Including images that identify or make a person identifiable, as well as their name, in published videos constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the usual legitimizing ground is consent, in general. And it is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent.

For this processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

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The provisions in letter f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions."

III

Conclusion

In order to identify the person who was publishing the images, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

<<1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Data Protection Agency shall act in any case when the investigation of processing involving massive traffic of personal data is necessary.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement deciding its initiation when the Spanish Data Protection Agency acts on its own initiative or as a consequence of the communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.>>

After conducting the investigations mentioned in the Facts, the following conclusions have been reached:

1. The claimed website is exclusively in Chinese and does not identify either the domain owner or the data controller. It has been established that this domain is hidden behind the proxy services of CLOUDFARE; however, there is evidence that the final hosting provider storing the data of the portal is AMAZON US.

2. On February 13, 2023, it was verified that the contents have been blocked and access is denied, displaying the message <> when visiting the URL. It is also confirmed that this error message appears when attempting to access a URL of a website that has been restricted by Cloudflare through rules activated in its Firewall.

3. Multiple attempts have been made to contact the complaining party to obtain additional information to that provided in the complaint and in order to verify that the reported contents are linked to it. It has finally been established that the complaint was filed by I.I.I.

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with ***NIF.1, of Chinese nationality, acting on behalf of the affected person D.D.D., with ***NIF.2, of legal age and Spanish nationality, the person to whom the reported photographs and videos belong. A copy of the affected person's ID is provided.

4. The person responsible for the publication of the content has not been identified.

Thus, since it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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